



DECISION

Complaint No. : POS/5362/KE/295/2022

Name and Address of the Complainant : Mr. Shahid Hafeez, R/o. A-71, Block-02, Ground Floor, Gulshan-e-Iqbal, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

ALLEGED INACTION BY SBCA AGAINST THE BUILDER OF RUFİ PEARL CITY FOR HIS FAILURE TO HAND OVER PHYSICAL POSSESSION OF BUNGALOW NO.C-1, SECTOR 49-A, RUFİ PEARL CITY SCHEME-33, GULSHAN-E-IQBAL.

THE COMPLAINT

Mr. Shahid Hafeez filed a complaint on 12.09.2022 against SBCA alleging inaction against the builder of Rufi Pearl City for its failure to hand over physical possession of Bungalow No. C-1, Sector 49-A, Rufi Pearl City Scheme-33, Gulshan-e-Iqbal, despite full payment made to the builder. He requested that in case physical possession of his booked bungalow is not given by the builder, he be asked to refund the deposited amount along with markup at market rate.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), after the complainant submitted the mandatory Affidavit on Form "A" along with other relevant documents. The complaint was referred to the Agency for comments.

3. After issuance of repeated reminders, the Deputy Director, PSA&C, SBCA, vide letter dated 11.01.2023 reported that the NOC for Sale and Advertisement for the project "Rufi Pearl City", was issued vide letter No. KBCA/KDA/DCB (D-II)/896/Adv-409, dated 10-07-2009. The proposed completion date in the NOC was given as 30.07.2013 for open plots and bungalows in favour of M/s. Ghani Builders and Developers (Owner), having Agreement for Sale and Development & Construction with M/s. Rufi Properties (DL-2826) & (BL-2825), through its partner, Rauf Ahmed s/o Nazeer Ahmed, based on the layout plan approved by MPGO, CDGK, vide letter No. URP-33-612.MPGO/2006/UD:-330/L dated 31.08.2006. The report observed that several conditions, as per approval, had not yet been fulfilled by the builder.

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4. The Agency further reported that, with the approval of competent authority, the following actions have been taken:

- i. Letter sent to Licensing Section for cancellation of Developers/Builders Licenses of M/s. Ruff Builders & Developers and its allied firms, vide letter dated 14.12.2017;
- ii. Letter sent to Gulshan Town, SBCA for sealing of booking/site/head offices of M/s. Ruff Builders & Developers and its allied firms, vide letter dated 14.12.2017;
- iii. Letter sent to ABAD requesting cancellation of membership of M/s. Ruff Builders & Developers and its allied firms, vide letter dated 14.12.2017.

5. The Agency informed that the matter of said builder is also under investigation by NAB (Sindh) and therefore SBCA is not in a position to take further action against the builder.

6. Subsequently, in a hearing held on 29.03.2023, Mr. Khalid, Assistant Director, PSA&C, SBCA appeared and reiterated that the matter is under enquiry with NAB. He also produced a copy of letter dated 20.11.2019 issued by NAB to the Commissioner, Karachi, regarding evaluation of land situated in Sector 31 and 32 in Deh Sungal and NC-105, Sector 41-A, Deh Thoming Scheme 33, Karachi, confirming that the subject matter is under trial in Accountability Court-II.

FINDINGS

7. I have examined the case file and perused correspondence and reports etc., observed that:

- i. The complainant alleged non-delivery of physical possession of his booked bungalow despite full payment made to the builder;
- ii. SBCA has taken administrative and legal measures against the builder, including cancellation of his license, sealing of office and requesting ABAD for cancelling his membership.
- iii. The matter against the builder is under investigation by NAB, and under trial in Accountability Court-II.
- iv. No prima facie negligence or violation by SBCA is established, as the Agency has acted in accordance with its powers and is constrained to take further action due to ongoing NAB proceedings;

DECISION

8. In view of the above, the proceedings are dropped as the matter is subjudged on account of NAB proceedings, and trial underway in Accountability Court.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 05.12, 2025